

2022 C L D 900

[Lahore]

Before Masud Abid Naqvi, J

BUSHRA BIBI and others---Petitioners

Versus

ADDITIONAL DISTRICT JUDGE and others---Respondents

Writ Petition No. 22594 of 2019, decided on 30th September, 2021.

Negotiable Instruments Act (XXVI of 1881)---

----Ss. 29 & 29-A---Civil Procedure Code (V of 1908), O. XXXVII, R. 2---
Summary suit for recovery of money---Liability of legal representative signing---
Signature essential to liability---Scope---Respondent filed a summary suit for
recovery of amount mentioned in cheque along with mark up against the legal heirs
of the executant---Trial Court framed a preliminary issue regarding liability of
petitioners to be sued---Validity---Petitioners who were neither makers, drawers, or
endorsers nor acceptors of cheque and even presentation for encashment and
dishonouring of the alleged cheque during life time of executant could not have
legally authorized respondent to institute suit under O. XXXVII, R. 2, C.P.C.,
against petitioners, hence, the suit was not maintainable before the Trial Court---
Writ petition was accepted and the Trial Court was directed to return the plaint.

Nasir Iqbal v. Bushra Bibi and others ref.

Malik Shahbaz Ahmad for Petitioners.

Bilal Abdulla Khan for Respondent No. 2.

ORDER

MASUD ABID NAQVI, J.---Briefly stated facts of the case are that on 27.07.2018, the respondent No.2/plaintiff filed suit under Order XXXVII, Rule 2, C.P.C. for recovery of Rs.48,00,000/- on the basis of a cheque dated 12.09.2015 allegedly issued by Muhammad Yousaf/predecessor in interest of defendants/petitioners, who died on 30.11.2017. During the pendency of the suit, the learned trial court passed the order dated 14.03.2019 whereby preliminary issue No.4 (whether the defendants of the suit are not liable to be sued on the basis of cheque signed by their father? OPD), was decided against the defendants/petitioners. Through this writ petition, the petitioners/ defendants have challenged the legality of order dated 14.03.2019.

2. I have heard the arguments of learned counsel for parties and minutely gone through the impugned order and the available record.

3. Perusal of record reveals that alleged cheque was executed on 12.09.2015 while the executant of the cheque namely Muhammad Yousaf died on 30.11.2017 and the plaintiff/respondent No.2 filed suit under Order XXXVII, rules 1 and 2, C.P.C. for the recovery of Rs.48,00,000/- along with markup against the legal heirs

of deceased on 27.07.2018 wherein learned trial court decided issue No.4 by taking it as a preliminary issue being a legal question and passed the impugned order dated 14.03.2019. The moot question for the decision of this petition is that whether suit for recovery on the basis of cheque under Order XXXVII, rule 2, C.P.C. can be filed against legal heirs of deceased person who had allegedly issued disputed cheque, the provisions of Sections 29 and 29-A of Negotiable Instruments Act, 1881 are relevant for the answer of this proposition which are reproduced hereunder:-

"29. A legal representative of a deceased person who signs his name to a promissory note of exchange or cheque is liable personally thereon unless he expressly limits his liability to the extent of the assets received by him as such.

29-A No person is liable as maker, drawer, indorser or acceptor of a promissory note, bill of exchange or cheque who has not signed it as such.

Provided that where a person signs any such instrument in a trade or assumed name he is liable thereon as it he had signed in his own name."

After plain reading of the above mentioned provisions, there remains no doubt that defendants/petitioners who are neither makers, drawers, or endorsers nor acceptors of cheque and even presentation for encashment and dishonoring of the alleged cheque during life time of Muhammad Yousaf/predecessor in interest of defendants/petitioners cannot legally authorize plaintiff/respondent No.2 to institute suit under Order XXXVII, rule 2, C.P.C. against present petitioners/defendants/successors in interest of the deceased Muhammad Yousaf, hence, suit was not maintainable before trial court. Accordingly, this writ petition is accepted and learned trial court is directed to return plaint in the suit titled Nasir Iqbal v. Bushra Bibi and others to the plaintiff/respondent No.2 under Order VII, rule 10, C.P.C. for filing before the appropriate forum as the successors in interest of maker of the cheque cannot be sued under Order XXXVII, rule 2, C.P.C. Parties are directed to appear before the learned trial court on 14.10.2021.

SA/B-9/L Case remanded.